

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

1. Crl. Appeal No.646 of 2013
(Allah Ditta v. The State, etc).

2. Crl. Appeal No.704 of 2013
(Zeshan Khan v. The State, etc).

3. Crl. Revision No.392 of 2013
(Muhammad Shahzad Khan. v. Allah Ditta, etc).

JUDGMENT

Date of hearing 22.09.2016

Appellant
Allah Ditta by: Syed Karamat Ali Naqvi, Advocate (in Crl. Appeal No.646 of 2013).

Appellant
Zeshan Khan by: M/s. Muhammad Zaman Khan Vardag and Muhammad Nouman Shams Qazi, Advocates (in Crl. Appeal No.704 of 2013).

Complainant
& petitioner by: Mr. Muhammad Mehmood Chaudhary, Advocate (in Criminal Revision No.392/2013).

State by: Mr. Muhammad Akhlaq, Deputy Prosecutor General.

Aalia Neelum, J.- Allah Ditta son of Ramzan, cast Jatt, resident of village Matta, Tehsil Shakargarh District Narowal and Zeeshan Khan son of Shabbir Khan, cast Pathan, resident of Malik Afghanan, Tehsil Shakargarh District Narowal, the appellants were involved in case F.I.R. No.128 of 2012, dated 26.05.2012, offence under Section 302, 377, 34 PPC, registered at Police Station Shahgharib, Tehsil Shakargarh District Narowal and were tried by the learned Sessions Judge/Juvenile Court, Narowal. The learned trial court seized with the matter in terms of judgment dated 19.04.2013 convicted the appellants as under:

1. **Allah Ditta, appellant.**
Under section 302(b) PPC as tazir and sentenced to life imprisonment with the direction to pay

Rs.100,000/-as compensation to the legal heirs of the deceased Abou Hurera Under Section 544-A Cr.P.C and in case of default thereof, further undergo for six months.

2. **Zeshan Khan, appellant.**

- i) **Under section 377, 34 PPC and sentenced to life imprisonment** with the direction to pay Rs.50,000/- as fine to the legal heirs of the deceased and in case of default thereof, further undergo for six months.
- ii) **Under section 302(b) PPC as tazir and sentenced to life imprisonment** with the direction to pay Rs.100,000/-as compensation to the legal heirs of the deceased Abou Hurera Under Section 544-A Cr.P.C and in case of default thereof, further undergo for six months.

The benefit of Section 382-B of Cr.P.C was also extended in favour of both the appellants with further direction that both the sentences would run concurrently.

2. Feeling aggrieved by the judgment of the learned trial court, Allah Ditta, appellant has assailed his conviction and sentence through ***Crl. Appeal No.646/2013*** whereas the other appellant, namely, Zeshan Khan has challenged his conviction and sentence by filing ***Crl. Appeal No.704/2013***.

3. The complainant being dissatisfied with the judgment dated 19.04.2013, also filed a **Criminal Revision No.392 of 2013** against the respondents No.1 and 2 for enhancement of sentence of respondents/appellants, namely, Allah Ditta and Zeshan Khan, from life to death. As all the matters are arising out of one and the same judgment of the learned trial court, therefore, these are being **disposed of** through a consolidated judgment.

4. Precisely, the story as contained in the private complaint (Exh.PB) lodged by Muhammad Shahzad (PW-1) is that two nephews of the complainant, namely, Huzefa aged six years and Abu Hurera aged 3½ years were residing in the village Khudhri and were studying in AS Academy at Adda Bustan. Today, i.e. 26.05.2012

at 01:30 p.m, both Huzefa and Abu Hurera were on their way back to home after attending AS Academy, when Allah Ditta and two unknown accused forcibly took Abu Hurera with the intention to commit unnatural offence with him. When he did not return to the house, search was made for him. At about 4.00 p.m. Zulfiqar Khan and Yasir Khan PWs told him (the complainant) that they had witnessed Abu Hurera deceased in the company of Allah Ditta and two unknown persons proceedings towards Mustafa Abad. After short while, the complainant received information that dead body of said Abu Hurera is lying near Peeter Engine of Abbas in the fields whereupon he along with others proceeded to the alleged place and found the dead body of his nephew Abu Hurera smeared in blood who was murdered by Allah Ditta and two unknown accused persons. Earlier, Allah Ditta, accused also took Abu Hurera to his house and made an attempt to commit sodomy with him. After the alleged occurrence, the complainant (PW-1) rushed towards the Police Station and on the written complaint (Ex.PA), formal FIR (Ex.PA/1) was chalked out by Muhammad Anjum, ASI.

5. Thereafter the investigation was entrusted to Sajjad Ahmad, SI (CW-10) who proceeded to the place of occurrence, prepared rough site plan (Exh.CW-10/B), prepared inquest report (Exh.CW-10/C), injured statement (Exh.CW-10/D), application for postmortem examination (Exh.CW-10/E), collected blood stained earth from the place of occurrence (Exh.PD), also took into possession school bag of the deceased containing books and note books (P-1/1 to 6) and one shoe (P-2) vide recovery memo (Exh.PE) attested by the PWs. The dead body of the deceased was escorted to THQ Hospital, Shakargarh by Toheed Anwar, constable (CW-4) for autopsy. He (CW-10) recorded statements of the PWs and interrogated other persons present at the place of occurrence. On return to the police station he (CW-10) handed over the case property to the Moharrar. On 27.05.2012, he (CW-10) recorded the supplementary statement of the complainant who implicated Zeshan Khan-accused. He (CW-10) also recorded the statements of PWs regarding the supplementary statement. Toheed Anwar No. 84/C (CW-4) handed over to him (CW-10) the last worn clothes of the deceased i.e. paint (P-4) and shirt (P-5) which were taken into possession through recovery memo (Exh.PF) and (Exh.CW-4/1). He

(CW-10) also recorded the statements of PWs. On 28.05.2012, he (CW-10) arrested Allah Ditta and Zeshan accused. During interrogation, after their separate disclosure, both the accused separately led to the recovery of the brick (Rora) and took the same into possession vide recovery memo (Exh.CW-9/A), attested by the PWs-Zaka Ullah and Toqeer constable. He (CW-10) prepared rough site plan of the place of recovery (Exh.CW-10/F) on 28.05.2010. Mirza Tahir Tasleem, draftsman (CW-7) took rough notes on the direction of Investigation Officer and pointation of the complainant along with the PWs and thereafter he (CW-7) handed over scaled site plan (Exh.CW-7/A) to the Investigation Officer on 30.5.2012. On 25.7.2012 he (CW-10) produced the accused before the Analyst at Lahore for DNA purpose, after obtaining their custody from jail, along with the parents of the deceased and last worn clothes of the deceased. On 25.7.2012 he (CW-10) also sent the parcel containing piece of brick to the office of Chemical Examiner, Lahore through Abdul Razzaq 316/C (CW-6). He (CW-10) also produced the accused persons for ossification test and obtained their reports and he secured the same through recovery memo (Ex.CW-9/A). Later on, investigation was transferred to Muhammad Arif, Inspector RIB (CW-11), Range Crime Branch, Gujranwala on 20.10.2012 who investigated the case. On 12.11.2012 he recorded statement of PW Huzefa under section 161 Cr.P.C. On 22.11.2012 he (CW-11) visited the place of occurrence near Peeter Engine of Abbas Khan. On 23.11.2012 he (CW-11) interrogated accused Allah Ditta in District Jail, Sialkot.

6. Having found the appellants guilty, the Investigating Officer prepared report under section 173 Cr.P.C and sent the same to the court of Sessions enrooted through the learned Illaqa Magistrate as provided under Section 190 (2) Cr.P.C. Being dis-satisfied with the result of investigation, as the first Investigating Officer (CW-10) did not record the statement of PW Huzefa (PW-2) under Section 161 Cr.P.C, the complainant filed a private complaint (Exh.PB) in which formal proceedings were conducted and the accused were summoned to face trial under section 302, 377, 34 PPC.

7. After the appearance of accused persons, they were formally charge sheeted by the learned trial court in terms of order dated 19.12.2012 respectively, to which

they pleaded not guilty and claimed trial. The prosecution in order to advance its case, produced as many as seven prosecution witnesses. Muhammad Shahzad Khan (PW-1) is the complainant of the case, whereas his testimony was supplemented by Huzefa (PW-2), Yasir Arfat (PW-4), Hafiz Tariq Mehmood (PW-5) and Muhammad Afzal Khan (PW-6). Naeem Ullah Khan (PW-7) identified the dead body of Abu Hurera, deceased. The learned trial court also recorded eleven (11) CWs

8. Dr. Khalil Ahmad, (CW-5) conducted post mortem examination of Abu Hurera, deceased on 26.5.2012 and observed as under:-

DESCRIPTION OF INJURIES.

1. An abraded area measuring 3 cm x 2 cm on inner aspect of left lower thigh.
2. An abraded area measuring 6 cm x 4 cm on anterior aspect of left thigh.
3. An abraded area measuring 6 cm x 4 cm on anterior aspect of right thigh.
4. Penis and scrutum were severely injured.
5. 4 cm x 2 cm deep lacerated wound on skull above left eye. Bone was exposed.
6. A depressed area measuring 6 cm x 4 cm on forehead.
7. Deep lacerated area measuring 2 cm x 1.2 cm in left temporal region 6 cm above from left ear.
8. Whole chest was abraded from front side, stained with dust.
9. A deep lacerated wound measuring 4 cm x 2 cm in right temporal region, bone was fractured at the site.
10. 2 cm x 4 cm deep lacerated wound in left temporal region, none was fractured at the site.
11. Deep lacerated wound 2 cm x 1 cm in center of occipital region.

12. 2 cm x 2.6 cm deep lacerated wound in center of skull, bone was fractured at the site.
13. 2 cm x 2.6 cm deep lacerated wound 10 cm above from left temporal region.
14. A deep lacerated wound measuring 3 cm x 2 cm in right temporal region 6 cm above from right ear.

OPINION.

In his opinion, cause of death in this case was secondary to head injury by the above mentioned injuries which lead to excessive perfuse hemorrhage, and death. The injuries were ante mortem and were caused by blunt weapons. For sodomy, three samples were taken which were sealed and were handed over to police for detection for semen analysis and DNA detection. The probable time that elapsed between injuries and death was within one hour and that elapsed between death and postmortem was within 12 hours.

9. Dr. Muhammad Tariq, CMO (CW-5) conducted the medico-legal examination of Zeshan Khan-accused/appellant and observed as under:-

1. Primary and secondary sexual characters were fully developed.
2. Circumcise.
3. Cremystric reflex was positive.
4. Prostatic Massage was positive.
5. Not suffering from any decease of spinal cord.
6. Not suffering from any metabolic disease.
7. No operation scar in the groin area.

OPINION.

There was nothing to suggest that the above person was in capable to perform the sexual act. The MLC of accused Zeshan Khan is (Exh.CW-2/A).

10. On the same day, at 3.10 pm, said Dr. Muhamamd Tariq (CW-2) also conducted the Medico-Legal examination of Allah Ditta-accused/appellant and observed as under:-

1. Primary sexual characters were fully developed.
2. Not suffering from any disease of spinal cord.

3. Not suffering from any metabolic disease.
4. Cremasteric reflex was positive.

OPINION.

The opinion will be given after the Radiologist for aged determination. The MLC of accused Allah Ditta is (Exh. CW-2/B) which is in my handwriting and bears my signature.

Rest of the prosecution witnesses are formal in nature.

11. On 21.01.2013, the learned counsel for the complainant gave up PW-Sabir Khan being un-necessary. Similarly, on the statement of learned counsel for the complainant and the learned Assistant District Public Prosecutor recorded on 12.3.2013 gave up PW Toqeer Ahmad 755/C being unnecessary and closed the prosecution evidence on 18.3.2013 after tendering the report of Serologist regarding blood stained piece of brick and earth Exh.PG, report of Chemical Examiner qua blood stained earth Ex.PH, report of Chemical Examiner qua brick/Rora (Exh.PI).

12. The appellants were also examined under Section 342 Cr.P.C, wherein Zeshan accused opted not to appear as his own witness in terms of Section 340 (2) Cr.P.C in disproof of allegations levelled against him. However, he opted to produce defence evidence. Neither Allah Ditta-accused opted to lead defence evidence nor to appear as his own witness in terms of Section 340 (2) Cr.P.C in disproof of allegations levelled against him. However, while replying to a question that why this case is against him and why the PWs have deposed against him, Zeshan Khan, the appellant made the following deposition:-

“I used to go in the AS Academy for tuition purpose as private student of 9th class. On 26.05.2012 as usual after my tuition, I departed from academy at about 01.00 p.m. and came to my home via Malik Bag stop by riding on a motorcycle. I heard about the recovery of dead body of a missing boy at about 04.30 p.m. Being member of the pathan brothers on the same day, I along with my father went for condolence with the family of victim and on the next day we also participated in the funeral ceremony of the deceased. The police arrested accused Allah Ditta, a student of 5th class on the day of occurrence. The IO

inquired from said Allah Ditta who is his bench-mate in the class room. He had taken the name of one Zeshan Khan alias Shani, r/o village Mamewal. Police joined investigation the said Zeshan alias Shani but let him off. After that a rumour spread in the locality that the accused Allah Ditta named one Zeshan alias Shani. Then police started a fishing investigation in the name of Zeshan alias Shani. There were many students with the name of Zeshan alias Shani studying in the AS Academy at that time. The IO joined many of them in investigation but let them off due to reasons best known to them. The news of this murder incident spread in the locality and also flashed in the media. The complainant party was also protesting on the matter and there was a rumour that Chief Minister, Punjab was coming to visit the police station regarding this incident. There was a lot of pressure on the local police to trace out and arrest the accused. Then the IO who wanted to get rid of this pressure and to save his skin made me a scape goat and with the connivance of the complainant party fabricated false evidence of Wajtakar and falsely named me in this case. The IO himself had written the supplementary statement of the complainant and on 27.05.2012 at 11.00 p.m. by raiding my home arrested me to show his false efficiency in the case to the high-ups. On the day of my arrest and on the next day many respectable of the locality appeared before the IO to prove my innocence but the IO with malafide intention did not join them in investigation. The I.O. planted a crime weapon/piece of brick Rora upon me and prepared fabricated recovery memo and had shown the Rora recovered from me. I along with my defence witnesses joined the second investigation and recorded our statements to the IO of RIB, Gujranwala. The witnesses mere on rumour and suspicion and by joining hands with the local police involved me in this case. All the PWs are related inter-se and they became inimical towards me due to the false rumours. I have nothing to do with the alleged occurrence. I am innocent. ”

Similarly, while replying to a question that why this case against him and why the PWs have deposed against him, Allah Ditta, the appellant made the following deposition:-

“I am innocent having no concern with the commission of this alleged offence. I have wrongly been involved in this case just under suspicion based upon presumptive

assessment after due deliberations and consultations. Abu Hurera (deceased) was not a student of AS Academy and he was just kidnapped by some ogre like person from village Khudra as unattended child and then he was murdered by some unknown person. I have maliciously been involved under suspicion and personal assessment as an after thought. I have been roped in this false case just in order to black male my parents for extraneous reasons. PWs were inimical being inter-se related and have opted to be false witness under the instruction of complainant of this case just in order to strengthen the false prosecution case. I have nothing to do with the alleged occurrence. I am innocent.”

13. In defence, Zeshan Khan-accused produced Anwar Khan (DW-1), Younis Khan (DW-2), Muhammad Naseer Ahmad (DW-3) and Shabbir Khan (DW-4) and closed his defence evidence on 04.4.2013.

14. After hearing the arguments advanced by the learned counsel appearing on both sides, the learned trial court, while evaluating the evidence available on record, found the version of the prosecution as correct beyond any shadow of doubt, which resulted into conviction of the appellant in the above stated terms.

15. The learned counsel for the appellants has submitted that there is no eye witnesses of the occurrence of sodomy and that the PWs are interested as well as chance witnesses as they had not seen the deceased in the accompany of the accused. Learned counsel has further submitted that the FIR is totally silent qua moving any application by the parents of the deceased or the complainant against Allah Ditta regarding earlier attempt to commit sodomy with the deceased. It is further submitted that the complaint was filed in order to fill up the lacuna as the prosecution witnesses tutored the child. It is further submitted that major contradictions are available on the record to disprove the allegation levelled by the prosecution witnesses. It is further submitted that joint recovery of “Rora” has been planted upon both the accused persons which is inadmissible. It is further submitted that last seen witness particularly Zulfiqar (PW-3) is a co-villager of the complainant and no feature has been given. Learned counsel for the appellants has finally submitted that the prosecution had miserably failed to prove its case against the

appellants beyond any shadow of doubt, thus, this appeal may be accepted and the appellants may be acquitted from the charge.

16. On the other hand, the learned Deputy Prosecutor General for the State assisted by the learned counsel for the complainant has opposed the instant appeal and have submitted that the appellants have specifically been named in the FIR with specific role; that there was no reason for false implication of the appellants; that there is no material conflict between the testimony of the witnesses; that the learned trial court has committed material irregularities and illegalities while awarding life imprisonment by the appellants. Lastly the learned counsel for the complainant has prayed for enhancement of their sentence from life imprisonment to death of the appellants.

17. I have heard the arguments advanced by the learned counsel for the appellant as well as the learned Law Officer and perused the record.

18. It may be noted at the outset that there is no direct evidence adduced by the prosecution to connect the accused with the crime. The dead body of the deceased Abu Hurera was found in the field lying near Peeter Engine of Abbas at about 4.00 p.m. on 26.05.2012. It is settled proposition of law that in a case of circumstantial evidence, the facts on which the prosecution relies must be fully and finally established. These facts must lead to only one conclusion that is guilt of the accused and it must exclude all reasonable hypothesis consistent with the innocence of the accused. The entire prosecution case against the appellants-Allah Ditta and Zeshan Khan rests on the oral evidence of Muhammad Shahzad Khan-the complainant (PW-1) as well as of Huzefa Khan (PW-2), Zulfiqar (PW-3) and Yasir Arfat (PW-4) witnesses of last seen to the extent of Allah Ditt-accused (the appellant) whereas, the evidence of 'Wajtakar' to the extent of Zeshan Khan accused (the appellant) was produced by the prosecution through Hafiz Tariq Mehmood (PW-5) and Muhammad Afzal Khan (PW-6). As per written complaint (Exh.PA), F.I.R. (Exh.PA/1) and the private complaint (Ex.PB), on 26.05.2012 the nephew of the complainant Abu Hurera did not return back after closure of school at 1.30 p.m. whereupon he started search of Abu Herera and at 4.00 p.m. Zulfiqar Khan (PW-3) and Yasir Arfat (PW-

4) met him (the complainant) and they informed the complainant that they saw Abu Herera in the company of Allah Ditta and proceeded towards Mustafabad. In short while he came to know that the dead body of Abu Hurera was lying near Peeter engine of Abbas in the fields. The complainant (PW-1) had come to know about the murder of Abu Hurera after short while when he had received information that Abu Hurera was in the company of Allah Ditta, the accused. However, during cross-examination he deposed that he (PW-1) submitted complaint (Exh.PA) before the police at 05.00 p.m., whereas from the police Karawi written on the complaint (Ex.PA) by Muhammad Anjum, ASI (since dead) revealed that Rapt No.12 dated 26.05.2012 regarding the complaint (Ex.PA) was incorporated at 7.00 p.m. whereupon formal FIR (Ex.PA/1) was chalked out however, the distance between the police station and the place of occurrence was 16 kilo meters whereas the complainant (PW-1) took three hours for reaching the police station for reporting the incident. Sajjad Ahmad, SI (CW-10) deposed that on 26.05.2012 on receiving copy of the FIR (Ex.CW-10/A) he (CW-10) along with other police officials proceeded to the place of occurrence situated at Village Matta Kalan and thereafter he prepared inquest report (Exh.CW-10/C). It has been noticed that the particulars of the F.I.R. (Exh.CW-10/A as exhibited Ex.PA) are not mentioned in the inquest report (Exh.CW-10/C) if that is so, it is not believable that the complainant (PW-1) had reported the incident through written application (Ex.PA) without consultation and deliberation. It is also noted that in the column No.3 of the inquest report, date and time of receiving knowledge of incident was mentioned 4.00 p.m. on 26.05.2012 and Sajjad Ahmad, SI (CW-10) has mentioned the names of the persons who identified the dead body of Abu Hurera as Naeem Ullah Khan and Sabir Khan both residents of Village Afghanan and village Matta respectfully. This out rightly suggests that the complainant (PW-1) and the prosecution witnesses were not present, at the time of inquest report in the case was prepared. The inquest report (Ex.CW-10/C) also reflects that the dead body of Abu Hurera was handed over to Ejaz constable/646 by Sajjad Ahmad, SI (CW-10) for post mortem examination whereas, Toheed Anwar 84/C (CW-4) deposed that he escorted the dead body of Abu Hurera to hospital for post mortem examination. Dr. Khalil Ahmad (CW-5) deposed that dead body of the deceased-Abu Hurera was brought by Zaka Ullah 172/C and Toheed Ahmad 84/C.

In view of the matter, the conclusion I arrived at is that the FIR had been registered after due consultation and deliberation by the complainant (PW-1). The absence of all above details is indication of the fact that at the time of preparation of inquest report, the FIR was not in picture and the FIR was recorded after due deliberations and consultations. On account of the infirmities as noted above, the FIR has lost its value and authenticity.

19. I have also noted that in the inquest report (Exh.CW-10/C) in item No.11, it was mentioned "Blood Frozen". This shows that the death had occurred much earlier to the time mentioned by the prosecution. This also creates doubt about the time of missing of Abu Hurera. I have noticed that Dr. Khalil Ahmad (CW-5) who conducted the post mortem on the dead body of Abu Hurera during court statement opined that the post mortem was conducted at 1.30 a.m. on 27.5.2012 and the probable time that elapsed between the injuries and death was within one hour and that elapsed between death and post mortem was within 12 hours. Thus, it is amply clear from the testimony of Dr. Khalil Ahmad (CW-5) that Abu Hurera died between 1.30 a.m. to 1.30 p.m. on 26.5.2012 and before death he remained alive for almost one hour in injured condition. It is the prosecution case that Zulfiqar Khan (PW-3) and Yasir Arfat (PW-4) had seen Abu Hurera in the company of Allah Ditta on 26.5.2012. Yasir Arfat (PW-4) in his court statement stated that when they saw lastly Abu Hurera in the company of Allah Ditta, it was about 1.30 p.m. on 26.5.2012. Amer Sohail (CW-8), the Principal of Amer Educational School System Adda Bustan, stated in his court statement that the school started at 7.30 a.m. and closed at 1.30 p.m. It is the case of the prosecution that Abu Hurera was taken away by the accused Allah Ditta along with two unknown accused after coming back from school on 26.5.2012. It is sought to be suggested from the evidence of Yasir Arfat (PW-4) that at 1.30 p.m. Abu Hurera was alive. Whereas Hafiz Tariq Mehmood (PW-5) and Muhammad Afzal Khan (PW-6) also deposed in their court statement that on 27.5.2012 at 02.45/3.00 p.m. they saw Zeshan Khan accused walking fastly in disturbed condition. The testimony of Zulfiqar (PW-3), Yasir Arfat (PW-4), Hafiz Tariq Mehmood (PW-5) and Muhammad Afzal Khan (PW-6) being not in accord with the medical evidence itself is sufficient to disbelieve their testimony so

far as “last seen” and “Wajtakar” is concerned and the witnesses are unreliable and not creditworthy. This contradiction, variation and conflict between the testimony of the witnesses and the medical evidence have not been explained by the prosecution. This further improbabilities the version of PWs Zulfiqar, Yasir Arfat, Hafiz Tariq Mehmood and Muhammad Afzal Khan of last seen and Wajtakar. No reliance can be placed on such testimony of last seen and Wajtakar which would form the basis for conviction.

20. The learned counsel for the appellants submitted that PW-3, PW-4, PW-5 and PW-6 are interested as well as chance witnesses and on this count their testimonies should be rejected and has no substance. It is a settled proposition of law that relationship is not a factor to affect the credibility of witnesses, unless some other factor is brought on record to discredit their creditworthiness. In such like cases, the court has to adopt careful approach and analyze evidence to find out whether it is cogent and reliable. A duty is cast upon the court to examine their testimonies with due caution and care. A chance witness must adequately explain his presence at the place of occurrence. In the present case, the prosecution cited two categories of witnesses, one consisting of Zulfiqar (PW-3) and Yasir Arfat (PW-4) of last seen and other consisting of Hafiz Tariq Mehmood (PW-5) and Muhammad Afzal Khan (PW-6) of “Wajtakar”. I have carefully examined the testimonies of both set of witnesses. The complainant Muhammad Shahzad Khan (PW-1) is paternal uncle of the deceased, Zulfiqar (PW-3) is “Phophizad” of the complainant (PW-1) as well as wife of Zulfiqar (PW-3) and the mother of the deceased are real sisters, Hafiz Tariq Mehmood (PW-5) is brother of the complainant (PW-1) and Muhammad Afzal Khan (PW-6) is “Bhjanja” of the complainant whereas Yasir Arfat (PW-4) was not related to the complainant and was resident of adjoining village. The presence of the witnesses at the relevant time when Zulfiqar (PW-3) and Yasir Arfat (PW-4) have lastly seen the deceased alive in the accompany of Allah Ditta and presence of Hafiz Tariq Mehmood (PW-5) and Muhammad Afzal Khan (PW-6) when they lastly saw Zeshan Khan in disturbed condition coming from village Mustafabad is highly doubtful and the testimony of the witnesses did not have the ring of truth for the following reasons:-

- i) Firstly, that PW-3 Zuilfiqar deposed that “We visit Mustafabad and met Mushtaq and then came back, said Mushtaq was not joined investigation by me by the complainant. I had not disclosed the matter for which I visited Mushtaq nor the Investigating Officer asked the purpose of our visit to Mushtaq.”

Whereas Yasir Arfat (PW-4) deposed during cross-examination that, “We visited Noor Kot and we met Maulvi Abdul Razzaq where problem of the child of Zulfioqar was discussed. We stayed at Noor Kot for about 1½ hours.”

- ii) Zulfiqar (PW-3) admitted during cross-examination that, “The passage connecting to the house of accused Zeshan is also passing in front of my haveli. It is incorrect to suggest that the land owned by accused Zeshan is at a distance of two acres from my haveli. Volunteered, it is at a distance of two acres from my haveli.” It appears from the deposition of PW-3 that he had concealed substantial facts that he knew Zeshan Khan prior to the occurrence.
- iii) Hafiz Tariq Mehmood (PW-5) deposed during cross-examination that, “I did not mention in my cursory statement as to the fact of time when the accused met us on the way.” Whereas Muhammad Afzal Khan (PW-6) in his cross-examination deposed that he had mentioned the time 02.45/3.00 p.m. in his cursory statement. He (PW-6) has been confronted with his previous statement (Ex.DC) and contradicted to suggest that he had not mentioned time in his cursory statement. This would suggest that Muhammad Afzal (PW-6) last seen Zeshan Khan in disturbed position.
- iv) In cross-examination Zulfiqar (PW-3) deposed that, “We had not restrained the accused persons nor inquired from them.” The conduct of this PW was unnatural like a silent spectator to let Abu Hurera to go with Allah Ditta when he (PW-3) know past conduct of the accused Allah Ditta creates doubt about his presence. He (PW-3) deposed that,

“It is my knowledge that earlier Allah Ditta accused attempted to kidnapped the deceased. It is correct that I had not intervened when the deceased was in the accompany of the accused.”

Besides, Yasir Arfat (PW-4) deposed during cross-examination that, “We had not inquired nor we restrained them.” He (PW-4) further deposed that, “Zulqifar PW asked me to inquire from the accused that where they were taking away Abu Hurera deceased but I refused and said that they will go to their homes.”

- v) It is also important to mention here that the complainant (PW-1) deposed in his cross-examination that, “I had not filed any complaint against Allah Ditta, accused regarding previous occurrence.” Sajjad Ahmad (CW-10) deposed during cross-examination that, “before 26.05.2012 no complaint was received regarding the allegation that he tried to commit sodomy with the deceased before this occurrence.” Their presence i.e. Zulfiqar (PW-3) and Yasir Arfat (PW-4) on account of last seen and the presence of Hafiz Tariq Mehmood (PW-5) and Muhammad Afzal (PW-6) of “Wajtakar” are also doubtful. The evidence of these witnesses was replete with discrepancies, contradictions and improbable versions, which renders prosecution case doubtful.

21. However, I may mention here that as regards the charge of sodomy, the prosecution has failed to prove the same. From the medicolegal certificates of Zeshan Khan and Allah Ditta (Exh.CW-2/A) and (Exh.CW-2/B) respectively and testimony of Dr. Khalil Tariq (CW-2) it does not reflect that they (the accused persons) committed the act of sodomy with the deceased, as no mark of any injury was found on the private parts of accused persons at the time of their medical examination after their arrest on 29.5.2012. Besides Dr. Tariq Mehmood (CW-2) also deposed during cross-examination that, “I did not obtain any semen sample of the accused for the purpose of grouping and matching. Volunteered, that, it was not questioned through application by the Investigating Officer.” So the prosecution

has also lacked the support of medical evidence to prove sodomy with the deceased by the accused. Neither D.N.A. test was got conducted nor any report regarding semen grouping was obtained so potency test of the accused/appellants was of no use. The absence of medical evidence had given a fatal blow to the prosecution case.

22. There is another aspect of the case which cannot be ignored and there is glaring difficulty in accepting the evidence of the eye witness-Huzefa (PW-2), aged about 6 years. As the evidence of child witness is notoriously dangerous unless immediately recorded before any possibility of coaching is eliminated. In case of child evidence independent evidence required from which corroboration was to be sought not only about the factum of crime but also to connect the accused with the crime. Huzefa (PW-2) deposed during cross-examination that,

“When the dead body of my deceased brother was recovered, my statement was recorded by the Thanedar on the same day. I could not state the exact time when my statement was recorded by Thanedar. I had not visited the place of occurrence on the day of occurrence. On the day of occurrence, I had not visited the police station”.

Whereas Muhammad Shahzad Khan, the complainant (PW-1) deposed during cross-examination that,

“When police came at the place of occurrence, Huzefa PW was not present there. On 26.05.2012 Huzefa PW never met any police nor I arranged his meeting with police nor police called him for his statement.”

He (PW-1) further deposed during cross-examination that,

“It is correct that the narration regarding the evidence of Huzefa is not mentioned in my complaint (Exh.PA) nor Huzefa PW had been shown as witness of the occurrence.”

He (PW-1) further deposed during cross-examination that,

“It is correct that I had not mentioned in Exh.PA my complaint regarding the evidence pertaining to Huzefa PW which I have deposed today nor this fact has been mentioned in my supplementary statement nor in the statement under section 161 Cr.P.C. before police. I had

submitted an application Exh.PC before Addl: I.G. for transfer of investigation which is signed by me. It is correct that Huzefa is also not in picture in Exh.PC. It is correct that it has not been mentioned specifically in the application Exh.PC that the previous I.O. had not recorded the statement of Huzefa PW.”

He (PW-1) further deposed during cross-examination that,

“I had not mentioned any reason for non-mentioning the name of Huzefa as PW in FIR, in my supplementary statement, in my statement under section 161 Cr.P.C. before police at Narowal or any other application.”

23. In view of the above deposition of the PW-1 and PW-2 it is not safe to rely upon the evidence of Huzefa (PW-2). In my considered opinion, the evidence of Huzefa (PW-2) suffers from serious infirmity due to non-recording of the statement of the child at earliest. Particularly at such a tender age of six years, as in such a age he is an easy prey to tutoring. The evidence of Huzefa (PW-2) is not trustworthy. The reason of his testimony to be not trustworthy was that from the evidence on record of PW-1 and PW-2 it reveals that Huzefa (PW-2) was later on, introduced by the complainant (PW-1) and this fact has duly brought on the record.

24. Moreover, as far as recovery of brick piece “Rora” is concerned, Sajjad Ahmad, SI (CW-10) deposed during examination-in-chief that, *“he (CW-10) interrogated the accused separately and recovered piece of brick (Rora) on the pointation of the accused from the place of occurrence which was nearby the place where the dead body was found lying, which was taken into possession vide recovery memo Exh.CW-9/A which was attested by the PWs Zaka Ullah and Toqeer constable.”* Whereas Zaka Ullah 172/C deposed during examination-in-chief that, *“Sajjad Ahmad, SI interrogated them whereupon both the accused made disclosure and lead to the recovery of Rora (CW-9/P-1) near the Peeter engine of Abbas Khan on 28.5.2012.”* I have noted that the piece of brick was lying in the open space at the same place wherefrom the dead body was recovered but same was not secured by the Investigating Officer (CW-10) on 26.5.2012 at the time of inspection of the place of occurrence. However, Sajjad Ahmad, SI (CW-10) deposed during cross-examination that, *“On the said date, the Rora (weapon of offence) was available there but my eyes could not catch it as it was concealed with a “Banna”. This fact*

has not been mentioned by me in my case diary.” He (CW-10) also admitted during cross-examination that, *“It is correct that as per record the recovery was effected on 28.5.2012 and I handed over the case property brick bate to the Moharrar for safe custody on 25.07,2012 and recorded the statements of Moharrar under section 161 Cr,P.C. on 26.07.2012.”* Perusal of recovery memo (Exh.CW-9/A) suggests that accused Allah Ditta and Zeshan Khan who were under police custody jointly took out the piece of brick lying near Peeter engine, thus, it is a joint recovery from both the accused. The joint recovery cannot be regarded legal and admissible in law. For the reasons afore stated, the circumstances of recovery of brick piece cannot be taken into consideration.

25. In view of the matter, the conclusion I arrive at is that there is no credible evidence to establish that the complainant (PW-1), eye witnesses (PW-2), witnesses of last seen (PW3 and PW-4) and witnesses of Wajtakar (PW-5 and PW-6) have brought true facts before the court. The prosecution had badly failed to lead incriminating, corroborative/independent evidence to bring home guilt of the accused in the case of capital charge. The learned trial court was not justified in convicting the appellants while basing upon such un-trustworthy, un-corroborated evidence and conviction passed by the learned trial court in the circumstances is against all cannons of law recognized for the dispensation of criminal justice. As per dictates of law, benefit of every doubt is to be extended in favour of the accused. In the case of **Muhammad Akram v. The State** (2009 SCMR 230), wherein it has been held as under:-

“----Benefit of doubt---Principles---For given the benefit of doubt it is not necessary that there should be many circumstances creating doubts---Single circumstance creating reasonable doubt in a prudent mind about the guilt of accused makes him entitled to its benefit, not as a matter of grace and concession, but as a matter right.”

26. The upshot of the above discussion is that the prosecution has badly failed to bring home charge against the appellants beyond any reasonable doubt, therefore, in the interest of safe administration of criminal justice, **Crl. Appeal No.646 of 2013 filed by Allah Ditta, appellant and Crl. Appeal No.704 of 2013 filed by Zeshan**

Khan, appellant are accepted in toto. The conviction and sentence awarded by the learned Sessions Judge/Juvenile court, Narowal vide judgment dated 19.04.2013 is **set aside** and the appellants Allah Ditta and Zeshan Khan are **acquitted** of the charge. Both the appellants are in custody and are ordered to be released forthwith, if not required in any other case.

27. As far as **Criminal Revision No.392 of 2013** filed by Muhammad Shahzad Khan-complainant against the respondents No.1 and 2 for enhancement of sentence of respondents/accused, namely, Allah Ditta and Zeshan Khan is concerned, for the reasons stated above, the same has no weight, which is accordingly **dismissed**.

(AALIA NEELUM)
JUDGE

Approved for reporting.

JUDGE

Hamid/*